

FD&C ACTS (1)

5. FD&C Act Prohibited Acts Relating to Drugs

Title: Prohibited Acts Involving Adulterated, Misbranded, or Unapproved Drugs

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §301; 21 U.S.C. §331(a), (b), (c), and (d)

Plain English Summary:

The FD&C Act prohibits introducing an adulterated or misbranded drug into interstate commerce, as well as certain other acts involving non-compliant drugs. For an Ayurvedic startup, this means that selling an Ayurvedic product in the United States does not just require the product to meet substantive requirements; introducing a non-compliant product into interstate commerce can itself be a prohibited act.

The Exact Legal Text:

21 U.S.C. §331(a):

“The introduction or delivery for introduction into interstate commerce of any food, drug, device, tobacco product, or cosmetic that is adulterated or misbranded.”

21 U.S.C. §331(b):

“The adulteration or misbranding of any food, drug, device, tobacco product, or cosmetic in interstate commerce.”

21 U.S.C. §331(d) also prohibits introduction into interstate commerce of certain articles in violation of specified statutory requirements, including §355 (new drug approval).

Keywords/Triggers:

prohibited acts FDA, adulterated drug interstate commerce, misbranded drug, unapproved Ayurvedic drug, interstate commerce, FDA enforcement, 21 USC 331, FD&C Act violations

6. FD&C Act Drug Manufacturing and CGMP

Title: Current Good Manufacturing Practice for Drugs

Jurisdiction: United States

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §501(a)(2)(B); 21 U.S.C. §351(a)(2)(B)

Plain English Summary:

A drug is considered adulterated when its manufacturing, processing, packing, or holding methods, facilities, or controls do not conform to current good manufacturing practice (CGMP). For an Ayurvedic product classified as a drug, manufacturing must therefore be controlled so that the product meets applicable requirements for safety, identity, strength, quality, and purity.

The Exact Legal Text:

21 U.S.C. §351(a)(2)(B):

“if it is a drug and the methods used in, or the facilities or controls used for, its manufacture, processing, packing, or holding do not conform to ... current good manufacturing practice”

The provision further connects CGMP compliance with ensuring the drug's safety, identity, strength, quality, and purity.

Keywords/Triggers:

Ayurvedic GMP USA, drug CGMP, current good manufacturing practice, adulterated drug manufacturing, drug purity, drug identity, drug quality, 21 USC 351

7. FD&C Act — Insanitary Conditions

Title: Drugs Prepared Under Insanitary Conditions

Jurisdiction: United States

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §501(a)(2)(A); 21 U.S.C. §351(a)(2)(A)

Plain English Summary:

A drug is adulterated if it is prepared, packed, or held under insanitary conditions where it may become contaminated or harmful to health. An Ayurvedic manufacturer therefore needs appropriate sanitary controls throughout manufacturing, packaging, and storage.

The Exact Legal Text:

21 U.S.C. §351(a)(2)(A):

“if it has been prepared, packed, or held under insanitary conditions whereby it may have been contaminated with filth”

The provision also covers conditions that may render the drug injurious to health.

Keywords/Triggers:

insanitary drug conditions, Ayurvedic manufacturing hygiene, drug contamination, FDA sanitation, adulterated Ayurvedic product, drug storage, drug manufacturing conditions, 21 USC 351(a)(2)(A)